

HISTORY HACK · DOCUMENT-BASED QUESTION

Civil Liberties in the War on Terror Era

US.90 — Describe the impact of the September 11, 2001 terrorist attacks on the World Trade Center and the Pentagon, including the response of President George W. Bush and the USA PATRIOT Act.

Name _____ Class _____ Date _____

Directions. Read the following two primary source excerpts. Using the SOAPS framework and your knowledge of US.92, write a response that analyzes both documents and constructs an argument about the tension between national security and civil liberties in post-9/11 America, connecting this tension to earlier moments in U.S. history.

The sources

Document A

USA PATRIOT Act (Public Law 107-56), Preamble and Section 215, October 26, 2001 (Public domain; U.S. Government Publishing Office)

“To deter and punish terrorist acts in the United States and around the world, to enhance law enforcement investigatory tools, and for other purposes... The Director of the Federal Bureau of Investigation or a designee of the Director... may make an application for an order requiring the production of any tangible things (including books, records, papers, documents, and other items) for an investigation to protect against international terrorism or clandestine intelligence activities, provided that such investigation of a United States person is not conducted solely upon the basis of activities protected by the first amendment to the Constitution.”

SOURCE IT — DOCUMENT A

H — Historical context

What was happening when
this was made?

I — Intended audience

Who was meant to read or
hear it?

P — Purpose

What was it trying to make
the audience do or think?

P — Point of view

Who is speaking, and how
does that shape it?

Document B

Senator Russ Feingold (D-WI), Statement on the Senate Floor Opposing the USA PATRIOT Act, October 25, 2001 (Public domain; Congressional Record, U.S. Senate)

“Of course, there is no doubt that if we lived in a police state, it would be easier to catch terrorists. If we lived in a country that allowed the police to search your home at any time for any reason; if we lived in a country that allowed the government to open your mail, eavesdrop on your phone conversations, or intercept your email communications; if we lived in a country that allowed the government to hold people in jail indefinitely based on what they write or think, or based on mere suspicion that they are up to no good, then the government would no doubt discover and arrest more terrorists. But that probably would not be a country in which we would want to live.”

SOURCE IT — DOCUMENT B

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The question

Using both documents and your knowledge of US.92, write a response that: (1) applies SOAPS to each document; (2) constructs an argument about the constitutional values at stake in this debate; and (3) evaluates whether Feingold's warnings proved prescient based on subsequent revelations about the PATRIOT Act's implementation, connecting to at least one earlier historical precedent for wartime civil liberties restrictions.

Plan your answer

Your claim	
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Source	Evidence you will use	Why it supports your claim
Document A		
Document B		
Outside knowledge		

Write your response

